Indian Easements Act, 1882*

(5 OF 1882)

An Act to define and amend the law relating to Easements and Licensees.

Preamble

WHEREAS it is expedient to define and amend the law relating to Easements and Licensees.

It is hereby enacted as follows:—

PRELIMINARY

Short title.

1. This Act may be called the Indian Easements Act, 1882.

Local extent : It extends[1] to the territories respectively administered by the Governor of Madras in Council and the Chief Commissioners of the Central Provinces and Coorg;

Commencement : And it shall come into force on the first day of July, 1882.

STATE AMENDMENTS

KARNATAKA

■ **Section 1**

For the entry under the heading "Local Extent" substitute,

"It extends to the whole of the State of Karnataka." [Vide the Central Law, (Karnataka Extension) Act, 1978, w.e.f. 22-12-1978]

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* Dated 17-2-1882.

1. This Act extends to —
   (*i*) Union Territory of Jammu and Kashmir; and Union Territory of Ladakh by the Jammu and Kashmir Reorganisation Act, 2019, w.e.f. 31-10-2019.
   (*ii*) Ajmer-Merwara by the Scheduled District Act, 1874;
   (*iii*) Bombay and U.P. by the Easements (Extending) Act, 1891;
   (*iv*) Madhya Pradesh by the Madhya Pradesh Extension of Laws Act, 1958;
   (*v*) Punjab by the Indian Easements (Punjab Extension) Act, 1961;
   (*vi*) Kerala by the Indian Easements (Extension) Act, 1961;
   (*vii*) Pondicherry by the Pondicherry (Extension of Laws) Act, 1968.
   This Act has been repealed in its application to Bellary District by the Mysore Laws (Extension to Bellary and Amendment) Act, 1955.

Savings.

2. Nothing herein contained shall be deemed to affect any law not hereby expressly repealed; or to derogate from—

(*a*) any right of the [2][Government] to regulate the collection, retention and distribution of the water of rivers and streams flowing in natural channels, and of natural lakes and ponds, or of the water flowing, collected, retained or distributed in or by any channel or other work constructed at the public expense for irrigation;

(*b*) any customary or other right (not being a licence) in or over immovable property which the [2][Government], the public or any person may possess irrespective of other immovable property; or

(*c*) any right acquired, or arising out of a relation created, before this Act comes into force.

[3][Construction of certain references to Act XV of 1877 and Act IX of 1871.

3. All references in any Act or Regulation to sections 26 and 27 of the Indian Limitation Act, 1877* or to sections 27 and 28 of Act No. IX of 1871[4] shall, in the territories to which this Act extends, be read as made to sections 15 and 16 of this Act.]

COMMENTS

SECTION NOTES

3.1 Reference to Prior Limitation Acts:

- This section addresses statutory references made in any other Act or Regulation to certain provisions of earlier Limitation Acts:
- **Indian Limitation Act, 1877:** References to sections 26 and 27.
- **Indian Limitation Act, 1871:** References to sections 27 and 28.

3.2 Substitution with Current Provisions:

- In the territories where the Indian Easements Act, 1882, applies, these references to the earlier Limitation Acts are to be read as references to sections 15 and 16 of this Act.

CHAPTER I

OF EASEMENTS GENERALLY

"Easement" defined.

4. An easement is a right which the owner or occupier of certain land possesses, as such, for the beneficial enjoyment of that land, to do and continue to do something,

2. Substituted for "Crown" by the Adaptation of Laws Order, 1950, w.e.f. 26-1-1950.
3. Substituted by the Repealing and Amending Act, 1914.
4. Repealed by the Indian Limitation Act, 1877.

* *See* now the Limitation Act, 1963.

or to prevent and continue to prevent something being done, in or upon, or in respect of, certain other land not his own.

Dominant and servient heritages and owners: The land for the beneficial enjoyment of which the right exists is called the dominant heritage, and the owner or occupier thereof the dominant owner; the land on which the liability is imposed is called the servient heritage, and the owner or occupier thereof the servient owner.

Explanation.— In the first and second clauses of this section, the expression "land" includes also things permanently attached to the earth; the expression "beneficial enjoyment" includes also possible convenience, remote advantage, and even a mere amenity; and the expression "to do something" includes removal and appropriation by the dominant owner, for the beneficial enjoyment of the dominant heritage, of any part of the soil of the servient heritage, or anything growing or subsisting thereon.

Illustrations

(*a*) *A*, as the owner of a certain house, has a right of way either over his neighbour *B's* land for purposes connected with the beneficial enjoyment of the house. This is an easement.

(*b*) *A*, as the owner of a certain house, has the right to go on his neighbours *B's* land, and to take water for the purposes of his household, out of a spring therein. This is an easement.

(*c*) *A*, as the owner of a certain house, has the right to conduct water from *B's* stream to supply the fountains in the garden attached to the house. This is an easement.

(*d*) *A*, as the owner of a certain house and farm, has the right to graze a certain number of his own cattle on *B's* field, or to take, for the purpose of being used in the house, by himself, his family, guests, lodgers and servants, water or fish out of *C's* tank, or timber out of *D's* wood, or to use, for the purpose of manuring his land, the leaves which have fallen from the trees in *E's* land. These are easements.

(*e*) *A* dedicates to the public the right to occupy the surface of certain land for the purpose of passing and re-passing. This right is not an easement.

(*f*) *A* is bound to cleanse a water course running through his land and keep it free from obstruction for the benefit of *B*, a lower riparian owner. This is not an easement.

COMMENTS

SECTION NOTES

4.1 Easement Defined:

- An easement is a legal right that the owner or occupier of one piece of land holds over another piece of land.
- This right is granted for the beneficial enjoyment of the dominant land.
- The easement allows the dominant owner to either:
- Do or continue to do something on the servient land, or
- Prevent or continue to prevent something from being done on the servient land.

4.2 Dominant and Servient Heritages:

- The land that benefits from the easement is known as the dominant heritage, and the person benefiting is called the dominant owner.

- The land over which the easement is exercised, bearing the burden of the right, is called the servient heritage, and its owner or occupier is referred to as the servient owner.

Continuous and discontinuous, apparent and non-apparent, easements.

5. Easements are either continuous or discontinuous, apparent or non-apparent.

A continuous easement is one whose enjoyment is, or may be, continual without the act of man.

A discontinuous easement is one that needs the act of man for its enjoyment.

An apparent easement is one the existence of which is shown by some permanent sign which, upon careful inspection by a competent person, would be visible to him.

A non-apparent easement is one that has no such sign.

Illustrations

(*a*) *A* right annexed to *B's* house to receive light by the windows without obstruction by his neighbour *A*. This is a continuous easement.

(*b*) *A* right of way annexed to *A's* house over *B's* land. This is a discontinuous easement.

(*c*) Rights annexed to *A's* land to lead water thither across *B's* land by an aqueduct and to draw off water thence by a drain. The drain would be discovered upon careful inspection by a person conversant with such matters. These are apparent easements.

(*d*) *A* right annexed to *A's* house to prevent *B* from building on his own land. This is a non-apparent easement.

COMMENTS

SECTION NOTES

5.1 Types of Easements:

- This section categorizes easements into four distinct types:
  - Continuous and Discontinuous Easements.
  - Apparent and Non-apparent Easements.

5.2 Continuous Easements:

- A continuous easement is one where the enjoyment is automatic and ongoing, without the need for any human intervention or action.

5.3 Discontinuous Easements:

- A discontinuous easement requires an affirmative act by the dominant owner for its enjoyment.
- It is not automatic and is exercised only when the dominant owner decides to use it.

5.4 Apparent Easements:

- An apparent easement is characterized by the presence of a visible indication of its existence.
- The sign must be permanent and can be identified upon careful inspection by an experienced observer.

5.5 Non-apparent Easements:

- A non-apparent easement lacks any visible or obvious indication of its existence.